Unequal Interbranch Representation

How Members of Congress work with the bureaucracy and why some do much more than others*

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June 3, 2026 Current Version

Abstract

A focus on legislative work has limited contemporary understanding of congressional representation. In this paper, we advance and measure the concept of interbranch representation – how Members of Congress work directly with federal agencies on behalf of various constituencies. Interbranch representation includes casework (constituency service) on behalf of individuals, nonprofits, and businesses, as well as communicating with agencies about executive-branch policymaking and implementation. We document substantial inequality in interbranch representation. To explain it, we introduce a unified framework of Demand, Capacity, and Motivation, which integrates and extends theories rooted in unequal legislator capacity to deliver service, varying strategic motivations to invest time and energy in interbranch representation rather than other activities, and disparate demand for interbranch representation. A large share of the inequality can be explained by legislator capacity, particularly staff resources and experience. We find evidence of strategic behavior — legislators work with ideologically proximate agencies and those that their committees oversee — but this behavior does not explain inequality. We also find modest evidence for other types of strategic behavior in the form of reelection-motivated interbranch representation and as a substitute for legislating when one's party is out of power, but these effects are small and likewise do not explain inequality.

*This is a working paper, and part of a larger book project. Please see the latest version of the working paper. We are greatful for helpful comments from Kathy Cramer, Barry Burden, Liz Gerber, Maria Silfa, Molly Ritchie, Geoff Lorenz and participants in Annual Forum on American Institutional Renewal.

1 Introduction

How well do Members of Congress represent their constituents? This seemingly simple question is one that political scientists return to again and again. We argue that a myopic focus on legislative work has limited contemporary understanding of congressional representation. In so doing, scholars have largely overlooked a significant component of the work of congressional offices: direct engagement with federal agencies. We have thus failed to assess our democracy on important grounds.

In this paper, we advance and measure the concept of **interbranch representation** — how Members of Congress work directly with federal agencies on behalf of various constituencies. Interbranch representation includes casework (constituency service) on behalf of individuals, nonprofits, and businesses as well as communicating with agencies about executive-branch policymaking and implementation.[1] For example, prior work shows how legislators engage in interbranch representation to represent constituents' needs (Fiorina 1977; Fenno 1978; Mills and Kalaf-Hughes 2015; Powell et al. 2023; Snyder et al. 2025), constituents' policy preferences (Ritchie 2018, 2023), shared identity groups (Lowande et al. 2019), corporate donors, or (Powell et al. 2023).

We advance a unified framework of Demand, Capacity, and Motivation to explain variation in interbranch representation, integrating and extending theories rooted in unequal demand, unequal legislator capacity, and varying strategic motivations to invest time and energy in interbranch representation as opposed to other activities like legislating, communications, or fundraising. Prior work has typically studied these activities — and their explanations — piecemeal, focusing on one type of activity and a narrower set of causes at a time. To explain variation in interbranch representation, studies have focused on institutional position (Lowande 2018; Lowande and Potter 2019; Lauterbach and Ritchie 2025; Judge-Lord et al. 2026), experience (Ritchie 2018, 2023; Lowande 2018; Judge-Lord et al. 2026), or party status and partisan alignment (Ritchie 2018, 2023; Powell et al. 2023; Lowande 2018, 2019; Lauterbach and Ritchie 2025). Theories also suggest that interbranch representation ought to be driven by ideological alignment and electoral competition (Fiorina 1977; King 1991), but these intuitions are largely unsupported by empirical work (Lowande 2018; Ritchie 2018, 2023). Our aim in this paper is to integrate types of behavior and explanations to provide a more comprehensive assessment of the drivers of interbranch representation.

To do so, we leverage new data on interbranch representation, including over half a million hand-coded requests from Members of Congress to federal agencies from 2007 to 2025. This painstakingly collected new

[1] As we note below, parts of this broader concept have been studied under labels including "congressional oversight," "constituency service" (Fenno 1978), "lettermarking" in the context of spending (Mills and Kalaf-Hughes 2015), "lobbying," "backchannel representation," "backdoor lawmaking," or "policy representation" in the context of agency policymaking (Ritchie 2018, 2023; Ritchie and You 2019; Lauterbach and Ritchie 2025), "legislator advocacy" in the context of both constituent and donor service (Powell et al. 2023), "interbranch representation" in the context of legislators advising agency working groups (U.S. Department of Justice, Bureau of Justice Assistance 2016), and "interbranch representation of protected groups" in the context of descriptive representation in contacts to the bureaucracy (Lowande et al. 2019), or simply "representation" in the context of all types of requests to the bureaucracy (Judge-Lord et al. 2026). We adopt "interbranch representation" as a general umbrella concept to describe all of these kinds of representational activities, not only working group participation or contacts on behalf of descriptive identities, but also work on behalf of any other constituency, donor, business, industry, or district opinion on policy issues.

dataset allows us to systematically measure representation in a new way. Importantly, our comprehensive data allow us to put various explanations side by side with respect to the *relative* impact they have on overall interbranch representation.

We show that Members of Congress make over a hundred thousand requests a year directly to executive-branch officials. Unconstrained by legislative agendas and party discipline (Ritchie 2023), interbranch representation allows all Members of Congress to directly shape the workings of government. However, we find that work is highly unequal — some members engage in extensive interbranch representation, and others do almost none.

We evaluate effects on both the overall volume and distribution of interbranch representation. Specifically, we focus on the contribution of various causes of variation to the inequality across legislators. For example, classic political science theory suggests that different electoral security may lead some members to do more than others. Theories about office capacity offer different explanations for inequality in interbranch representation across legislators. Previous studies all focus on explanations for individual-level variation, not the shape of the distribution across all members.

Overall, we find that all three components of our framework (demand, capacity, and motivation) explain inequality in interbranch representation. Consistent with prior research on the significant role of congressional capacity in explaining aspects of legislative behavior (Ashworth and Bueno de Mesquita 2006; Ritchie 2018, 2023; LaPira et al. 2020; Crosson et al. 2021; J. Crosson and Kaslovsky 2024; Judge-Lord et al. 2026), we find that the largest share of the inequality in interbranch representation can be explained by legislator capacity, especially staff resources and the institutional knowledge that comes with experience in office. Specifically, experienced legislators who allocate more office staff to constituency service and less to communications provide more interbranch representation.

Strategic motivations like reelection are important but modest drivers of overall variation in interbranch representation. We find varying results for different aspects of strategic behavior. Consistent with Lowande (2018), we find legislators disproportionately contact agencies that their committees oversee and do not find that interbranch representation is driven by ideological disagreement. On the contrary, we find that legislators are much more likely to contact agencies perceived as ideologically proximate. We find some evidence for theories that interbranch representation is reelection-motivated (King 1991) and a strategic substitute for legislating when one's party is out of power (Ritchie 2018, 2023). Previous studies show convincingly that backchannel policy-making representation shapes behavior with certain agencies. Our near census of interbranch representation allows us to assess the relative magnitude of these effects in explaining overall behavior. While the effect of having a co-partisan president is consistently in the direction predicted by theories of interbranch representation that focus on the president allocating resources to co-partisans (Berry et al. 2010), presidential partisanship is not consistently a significant predictor of interbranch representation across models. However, as with earmarking in appropriations, we show that institutional power contributes to inequalities in interbranch representation.

Understanding this variation provides insight into how Congress is and isn't functioning, the causes of inequalities in representation, and how interbranch representation could be improved.

2 Theories of Interbranch Representation

To date, constituency service, oversight, and representation have been addressed by separate literatures. Constituency service has mostly been explored as reelection-oriented behavior. Oversight scholarship is dominated by principal-agent models of control. Representation has mostly been studied with respect to demographics, votes on bills, and, at times, speeches. The concept of interbranch representation that we advance in this paper unifies constituency service, oversight, and other behaviors within a broader conceptual and empirical framework. We conceptualize all interactions with the bureaucracy as a decision to allocate effort (staff and time) to different priorities representing different constituencies, constrained by capacity. This framework offers a way to study this form of representation systematically as a function of one's constituencies, capacity, and priorities.

Unlike other, more visible forms of congressional representation that have been the subject of substantial scholarly inquiry (roll-call votes, legislative speech, and bill sponsorship), interbranch representation is largely invisible and more difficult to study. Congress has refused to disclose data on this aspect of its work. In recent years, however, scholars have begun to obtain snapshots of this work from federal agencies that are (unlike Congress) subject to the Freedom of Information Act (FOIA) disclosure requirements. Acquiring these data is difficult, but doing so has yielded important findings on distributive politics (Mills and Kalaf-Hughes 2015), descriptive representation (Lowande et al. 2019), agency policymaking Ritchie (2023), legislative effectiveness (Kalaf-Hughes 2023), and money in politics (Powell et al. 2023). However, the lack of systematic data across all agencies has necessarily limited the range of questions that could be explored with these data.

2.1 Constituency service

Constituency service is one of the oldest forms of representation, dating back to the earliest congresses when constituents sought assistance with Revolutionary War pensions (Eckman 2025). It has been discussed as an important form of representation in canonical studies of Congress (Fenno 1978). Yet it remains one of the least understood congressional activities. Cain et al. (1987) began their seminal book *The Personal Vote: Constituency Service and Electoral Independence*, lamenting the lack of attention to constituency service in the empirical literature. Much of what we know empirically about constituency service still comes from their survey of legislators, legislative staff, and constituents, which is now more than 40 years old. For example, we have found no quantitative test of the assertion in King (1991) that constituency service is related to the incumbency advantage or of patterns documented by Fenno 50 years ago, such as the effect of legislators inheriting offices from their predecessors (Fenno 1978).

2.2 Interbranch Dynamics and Congressional Oversight

In recent decades, scholarship on the interaction between the legislative and executive branches has revolved around the concepts of strategic delegation of policymaking authority and appropriation of funds on the front end (Arnold 1979; Epstein and O'Halloran 1999; Kiewiet and McCubbins 1991) and oversight on the back end (McCubbins and Schwartz 1984). As a concept, delegation focuses attention on principal-agent dynamics. Oversight scholarship also focuses on principal-agent relationships, with some recent work on descriptive representation (Minta 2011).

Interbranch representation is not about acts of delegation and appropriation, but there are parallels and overlaps. Delegation and appropriation occur through voting, and scholars have shown significant inequalities in who is represented in legislative voting (Bartels 2008; Carnes 2016; Gilens 2012). Studies of delegation of policymaking authority focus on asymmetric incentives and information across institutions (Epstein and O'Halloran 1999; Fiorina 1982; McCubbins and Schwartz 1984). Interbranch representation is often aimed at improving legislator information and attempting to shape policy post-delegation in ways that were not possible within the legislative process (Ritchie 2018; and Ritchie 2023). Other classic studies of the relationship between Members of Congress and federal agencies focus on appropriations (Arnold 1979; Kiewiet and McCubbins 1991). This includes the presidential pork (Berry et al. 2010) and earmarking. Whereas earmarks are (in theory) a feature of annual appropriations legislation, a parallel dynamic of Members of Congress making requests for their district occurs on a daily basis through interbranch representation. Indeed, when legislative earmarks were banned, legislators likely turned to interbranch representation activities, such as "lettermarking" (Mills and Kalaf-Hughes 2015).

While interbranch representation encompasses many forms of oversight, it is broader than activities traditionally considered oversight (e.g., hearings, investigations, sanctions). A small share of congressional interactions with bureaucrats concern issues that rise to the level of hearings and investigations. The vast majority are interventions in the agency's day-to-day operations (see, e.g., Lowande 2018; Lowande and Potter 2019). Agencies are constantly engaged in maintaining their political coalitions and reputations (Carpenter 2001, 2014), by, for example, tagging all incoming requests from members of Congress as "VIP" and implementing protocols for rapid responses. An interbranch representation perspective broadens the concept of oversight to encompass not only occasional hearings and oversight reports prompted by crises and scandals but also daily requests for information and comments on implementation.

2.3 Representation

Representation is most often studied as the congruence between legislators' roll-call votes and constituents' policy preferences (e.g., Miller and Stokes 1963; Clinton 2006; Ansolabehere and Jones 2010), with congruence constituting normatively "good" representation and suggesting that legislators are responsive to their constituents' preferences. Studies of other forms of representation also assess congruence between constituents and legislators. Work on descriptive representation has assessed responsiveness on the basis of key identities (e.g., Bowen and Clark 2014; Canon 1999), including responsiveness through interbranch representation (Lowande et al. 2019). Scholarship on representation and inequality has found that legislators are more responsive to donors (Gilens 2012) and less responsive to less influential constituency groups (Miler 2010) and the poor (Miler 2018). For these commonly studied forms of representation, public voting records make it possible for scholars to measure congruence or responsiveness.

Over the last few decades, scholars have begun to evaluate other forms of representation, ranging from legislators' speech (Grimmer 2013; Grimmer et al. 2014) to evaluating legislative effectiveness as a measure of the "quality of representation" (Volden and Wiseman 2014; Casas et al. 2019). Constituency service, on the other hand, has been studied primarily as a means for legislators to win reelection (Fiorina 1977). In this view, legislators' responsiveness to constituent requests is not a form of representation but an electoral activity that also serves legislators. Only recently has quantitative scholarship begun to view constituency service as a form of representation (Snyder 2024). A large number of field experiments have uncovered distortions in legislators' responsiveness to constituents for the sharing of policy opinions (Butler and Dynes 2016; Henderson et al. 2023), requests for meetings with legislators (Kalla and Broockman 2016), and requests for constituency service (Butler and Broockman 2011; Lajevardi 2020; Garcia and Sadhwani 2023). Most of these studies, however, have been conducted on state legislators, and their results may not be generalizable to Members of Congress. Moreover, writing back to a constituent may not be the same as taking more substantive actions, such as intervening with a federal agency, on their behalf.

We build on and complement this literature on representation and responsiveness by documenting and explaining inequalities in interbranch representation, broadly construed, across all members of Congress, across all federal agencies, and across all forms of interbranch representation.

2.4 A Unified Framework: Unequal Demand, Unequal Capacity, and Strategic Motivations

We introduce a framework of Demand, Capacity, and Strategic Motivations to extend and unify theoretical ideas from disparate strands of scholarship on Congress and the Bureaucracy. Demand and capacity-related explanations focus on legislator offices as bureaucracies. Strategic explanations focus on legislators as politicians. In the following sections, we elaborate on each of these components of our framework.

Unequal Demand

One of the central elements of interbranch representation—constituency service–is often assumed to be a core institutional function of congressional offices, as evidenced by the fact that district office staff continue to provide constituency service even when the congressional office is vacant due to the death or resignation of the legislator. This dynamic suggests that constituency service is an activity aptly described by the "logic of appropriateness" that characterizes bureaucracies (March and Olsen 1989). Extending this idea to the realm of interbranch representation, legislators and their staff provide service to constituents simply because it is understood to be a key part of their representational responsibilities. The intuition here is that staff understand their job to be responding to all constituent requests.

In this paper, we limit our consideration of unequal demand to the varying number of constituents that legislators represent, with a particular focus on the Senate, with the wide range of state populations that senators represent. Conceptually, we might imagine that constituent demand could vary for reasons other than population. Some constituents might have a greater need for help from the federal government. Many constituents may not know that they could seek help from the Members of Congress. Further complicating this picture is that legislators appear to use capacity to generate demand through advertising and informing their constituents about ways they can help–either for strategic reasons or just because they believe normatively it is the right thing for them to do.

Hypothesis 1- Proportional Representation. *Legislators who represent more constituents will be associated with higher levels of interbranch representation.*

Unequal Capacity

We turn next to the **Capacity** component of our theory. We argue that how much interbranch representation legislators engage in is likely to be positively associated with the capacity of the legislator's office. The intuition here is that how much interbranch representation a legislator's office can provide is likely to vary by the amount of capacity a legislator's office has. Offices with greater capacity have the potential to provide more interbranch representation, and vice versa. We are building on four existing streams of capacity literature: 1) formal theory voter screening models that predict that as a legislator's capacity increases, they will increase their level of constituency service (Ashworth and Bueno de Mesquita 2006), 2) empirical research that suggests low congressional capacity serves as a major constraint on Congress's work (LaPira et al. 2020), 3) empirical research that shows legislator capacity impacts backchannel (backdoor) policymaking–when legislators contact executive agencies attempting to influence policy (Ritchie 2018, 2023) and 4) our prior research that shows that increases in congressional capacity can offset shifts in legislator priorities between policymaking and constituency service (Judge-Lord et al. 2026).

Hypothesis 2- Unequal Capacity. *Legislators office with more capacity will be associated with higher levels of interbranch representation.*

There are, however, several different aspects of capacity to consider. We've thus developed sub-hypotheses that capture these different components of Congressional capacity.

Capacity gained from legislator experience. Like anyone starting a new job, legislators face start-up costs such as how to organize their office, develop efficient routines, and make connections. Empirical research on both policy work with executive agencies (Ritchie 2018, 2023; Judge-Lord et al. 2026) and constituency service work with executive agencies (Judge-Lord et al. 2026) has shown that capacity gained from legislator experience is correlated with higher levels of interbranch representation. Thus,

Hypothesis 2a- Capacity: Legislator Experience. *Legislators with more experience will be associated with higher amounts of interbranch representation*

Staff quantity. Committee chairs direct committee staff in addition to their own personal staff. Empirical research shows that this additional staff capacity increases both policy work (Ritchie 2018, 2023; Judge-Lord et al. 2026) and constituency service (Judge-Lord et al. 2026).

Hypothesis 2b- Capacity: Staff Quantity. *Legislators with more staff will provide more interbranch representation.*

Hypothesis 2c- Capacity: Staff Allocation. *Legislators who allocate staff to constituency service will provide more interbranch representation.*

Staff quality. Cottle (2022) finds that staff experience affects the productivity of legislative committees. Similarly, we might expect that members who inherit experienced staff from the previous representative of that state or district will have more capacity for interbranch representation. Because staff are much more likely to stay when the new representative of the same party, we use whether the former representative was of the same party as a proxy for staff quality. We expect this effect to be especially strong in offsetting the start-up costs of new members in their first two years, so we allow it to vary by legislator experience.

Hypothesis 2d- Capacity: Staff Quality. *Legislators with higher-quality staff will be associated with higher amounts of interbranch representation.*

Strategic Motivation Theory

How much energy and staff time do legislators want to devote to interbranch representation as opposed to other tasks (legislating, communicating, etc.)? It may depend on what they are trying to accomplish. Beginning with Fenno (1973) and Mayhew (1974), a substantial body of legislative politics literature has explored the strategic motivations of members of Congress. We begin with a general hypothesis that legislators with different strategic motivations will be associated with different levels of interbranch representation. These varying strategic motivations could shape members' desire to engage in both the constituency service and policy components of interbranch representation.

Hypothesis 3- Strategic Motivation. *Legislators have different motivations: How much energy and effort the legislator wants to invest in interbranch representation as opposed to other tasks (legislating, fundraising, etc.).*

Reelection Motivation. While it is difficult to directly measure a legislator's motivation, we can identify situations in which legislators are likely to prioritize certain goals or motivations. Perhaps the most widely recognized strategic motivation of legislators is reelection (e.g., Mayhew 1974; Cain et al. 1987; Fiorina 1977; Fenno 1973). As David Mayhew famously wrote in *Congress: The Electoral Connection*, "[Reelection] has to be the *proximate* goal of everyone, the goal that must be achieved over and over if other ends are to be entertained,"(Mayhew 1974). Legislators motivated by electoral concerns might devote additional attention and resources to helping their constituents, so that those constituents will vote to reelect the legislator (Serra and Cover 1992; Serra and Moon 1994; Dropp and Peskowitz 2012). This expectation, however, is contrary to Ritchie's findings in *Backdoor Lawmaking*, which showed no consistent relationship between electoral vulnerability and policy-work with federal agencies (Ritchie 2023).

Hypothesis 3a- Motivation: Re-election. *Legislators worried about reelection (from more vulnerable districts) will be associated with higher amounts of interbranch representation*

Majority Status in Chamber Motivation Decreasing Interbranch Representation. In her research on backdoor policymaking with federal agencies, Ritchie argues that legislators are most likely to turn to backchannel lawmaking by appealing directly to federal agencies when they face obstacles in the legislative process (Ritchie 2023). Majority legislators encounter a much friendlier legislative environment, and are thus less likely than minority legislators to turn to backchannel policy appeals to bureaucratic agencies.

Hypothesis 3b- Motivation: Majority Status in Chamber Less Interbranch. *Legislators from the majority party will be associated with lower amounts of interbranch representation.*

President's Party Increasing Interbranch Representation. Building on Berry et al. (2010)'s finding that Members of the President's party receive more federal spending in their districts, we hypothesize that Members of the president's party may engage in higher levels of interbranch representation. Our reasoning here is that, as the name implies, interbranch representation is at the nexus of the executive and legislative branches. While the behavior we're documenting in this paper is the legislative portion of that relationship (legislators reaching out to executive branch agencies), to actually be able to deliver results to their constituents, they need cooperation from the executive branch agencies. If legislators of the president's party think they are more likely to receive higher levels of cooperation from executive branch agencies, they may be motivated to attempt interbranch representation at higher rates.

Hypothesis 3c- Motivation: President's Party More Interbranch. *Legislators from the President's party will be associated with higher amounts of interbranch representation.*

President's Party Decreasing Interbranch Representation. The other side of the coin, however, is that while members of the president's party might anticipate a friendlier reception from executive branch agencies controlled by a same-party president, members of the opposition party might have greater incentives to engage in oversight of an executive branch controlled by an opposing party's president. Similarly, we might anticipate constituents of opposition party legislators having more concerns or problems with agencies controlled by a president of a different party, who might prioritize different types of constituents or policies less hospitable to opposition party constituents. Lastly, Ritchie's argument that legislators turn to backdoor policymaking when they confront obstacles in the legislative process applies here, too. Faced with a president unlikely to support the legislative proposals of opposition legislators, Ritchie found that legislators were more likely to turn to backchannel policymaking (Ritchie 2023).

Hypothesis 3d- Motivation: President's Party Less Interbranch. *Legislators from the President's party will be associated with lower amounts of interbranch representation.*

Committee Oversight. Interbranch representation includes many forms of agency oversight. Only a small proportion of congressional-agency interactions rise to the levels of hearings and investigations. Instead, as Lowande (2018) and Lowande and Potter (2019) demonstrate, most legislative interventions happen in direct communication between legislators and agencies. Legislators who sit on congressional committees overseeing an agency are likely to engage in higher levels of interbranch representation with that agency. We think this relationship is likely to exist for two reasons. First, legislators are likely to be substantively interested in that policy area to have received a seat on that committee. Second, their responsibility as committee members may also lead them to engage in higher interbranch representation with agencies under the committee's jurisdiction.

Hypothesis 3e- Motivation: Committee Oversight. *Legislators who sit on a congressional committee that oversees an agency will engage in higher amounts of interbranch representation with that agency.*

Ideologically Proximate. Legislators who share similar preferences with an agency (are ideologically proximate to the agency) might want to engage in more work with the agency.

Hypothesis 3f- Motivation: Ideologically Proximate. *Legislators who are ideologically aligned with an agency will engage in higher amounts of interbranch representation with that agency.*

Ideologically Distant. A competing hypothesis would be that legislators who dislike what an agency does (are ideologically distant from the agency) would be likely to send more communications to the agency somewhat. The rationale here is analogous to seeking to oversee or investigate something a legislator dislikes.

Hypothesis 3g- Motivation: Ideologically Distant. *Legislators who are ideologically distant from an agency will engage in higher amounts of interbranch representation with that agency.*

3 Research Design

To understand highly unequal levels of interbranch representation, we rely on a nearly decade-long data collection effort to look both descriptively at cross-sectional differences across legislators and more rigorously at within-legislator and within-district differences-in-differences specifications for causal leverage. While in an ideal world we'd be able to look at our more rigorous specifications in all circumstances, some of our hypotheses can only be examined descriptively. Table 1 summarizes the hypotheses and whether they can be examined with each design type.

3.1 Measuring Interbranch Representation

For 9 years, we have been filing FOIA requests with all federal agencies and sub-agencies for all records of their correspondence with members. This effort to collect a near census of legislator-agency interactions has yielded by far the largest and most comprehensive dataset of its kind.

Table 1: Hypotheses and Research Design

Category	Hypothesis	Direction	Within Member	Across Member
Demand	H1: Proportional Representation	Positive	✗	✓
Capacity	H2a: Legislator Experience	Positive	✓	✓
Capacity	H2b: Staff Quantity	Positive	✓	✓
Capacity	H2b: Staff Allocation	Positive	✓	✓
Capacity	H2d: Staff Quality	Positive	✓	✓
Motivation	H3a: Reelection	Positive	✗	✓
Motivation	H3b: Majority Status in Chamber	Negative	✓	✓
Motivation	H3c: President's Party	Positive	✓	✓
Motivation	H3d: President's Party	Negative	✓	✓
Motivation	H3e: Committee Oversight	Positive	✓	✓
Motivation	H3f: Ideologically Proximate	Positive	✓	✓
Motivation	H3g: Ideologically Distant	Positive	✓	✓

Note: This table summarizes each hypothesis, its predicted direction, and whether it can be examined with within-member and/or across-member analyses. Check marks indicate that the hypothesis can be explored with that research design; X marks indicate that the hypothesis can't be examined with that research design.

Obtaining records of legislators' communications with federal agencies through FOIA requests is laborious, painstaking, and time-consuming, with agencies often taking years to respond to a single request. We have spent hundreds of hours negotiating with FOIA officers, filing appeals, and convincing judges to order agencies to provide these documents. The raw data we received (often scanned PDFs full of redactions, handwritten call logs, or screenshots of database entries) has taken years to clean and process. Understandably, therefore, recent studies have focused on records from a limited number of agencies. Those studies have yielded important findings regarding distributive politics (Mills and Kalaf-Hughes 2015), the policy strategies of cross-pressured legislators (Ritchie 2018, 2023), the role of ideology in congressional oversight (Lowande 2019), descriptive representation (Lowande et al. 2019), and money in politics (Powell et al. 2023). With a near census of agencies, we are able to study patterns across all members and policy areas. This allows us to ask more general questions, test existing explanations out of sample, and compare the magnitude of effects documented in previous studies.

3.2 Other variables

We augment our data on legislator requests to agencies with data from other scholars.

Several of these variables capture features of the legislator-agency relationship. To assess whether holding an oversight role for an agency affects interbranch representation to that agency, we use data from @unitedstates-project (2025) on committee membership and Lewis and Selin (2012), who document committees' formal jurisdictions. We use staff allocation data for members of the House from Crosson et al. (2021) via the replication files for J. M. Crosson and Kaslovsky (2024). To assess the ideological similarity between members of Congress and specific federal agencies, we subtract a member's first dimension

DW-NOMINATE scores (Lewis et al. 2024) with measurements of federal agencies' perceived ideological leanings (Richardson et al. 2018a). To measure the ideological *distance* between members of Congress and federal agencies, we subtract each member's first-dimension DW-NOMINATE score from the ideology score of each agency. We also use other legislator-level variables from Lewis et al. (2024), including year of first election to calculate experience in office and party membership to derive majority status and whether a legislator is a member of the president's party. As Judge-Lord et al. (2026) documented that much of the start-up costs (especially for constituency service) occur in the first two years, we model experience as having more than two years in office for purposes of testing the impact of experience against other causes of variation in interbranch representation. We also adopt the definition of prestige committee assignments from Devin Judge-Lord and Eleanor Neff Powell and Justin Grimmer (2025).

Other variables are at the legislator or district level. For data on electoral competitiveness, we use data from Thomsen (2023) on vote share in primary and general elections, adopting her definition of whether an election was competitive.

3.3 Statistical Model

Because our outcome is a count, we use negative binomial regression with agency-year fixed effects to estimate cross-sectional differences. For within-legislator differences, we also include legislator-agency fixed effects, so coefficients represent the change in the number of requests per legislator per agency per year.

Our analysis is generally at the legislator-agency-year level. In Table 1, we set out expectations for differences across members and within-member variation.[2] We thus estimate both cross-sectional and difference-in-differences regressions, similar to the specifications in Berry and Fowler (2016). Tests for differences within legislator-agency pairs take a form similar to Equation 1 (with additional variables, such as those relating to elections, that decrease the number of observations included only in some specifications). However, to assess how much each factor contributes to the observed differences across members shown in Figure 1, we must rely on cross-sectional estimates (Equation 1 without γ_{ij}).

$$
\begin{aligned}
Y_{ijt} \mid X_{ijt}, \gamma_{ij}, \delta_{jt}, m_{it}, p_{it} &\sim \text{NegBin}(\mu_{ijt}, \alpha), \\
\log(\mu_{ijt}) = &\beta_1 \text{Committee Leadership Position}_{it} \\
&\beta_1 \text{Oversight Committee Position}_{itj} \\
&+\beta_2 \text{Experience in Office}_{it} \\
&+\beta_3 \text{Majority Party}_{it} \\
&+\beta_4 \text{President's Party}_{it} \\
&\ \ldots \\
&+\gamma_{ij} + \delta_{jt}
\end{aligned}
\tag{1}
$$

[2]We drop ten member-year level observations where members switched chambers mid-congress.

Y_{ijt} is the number of requests legislator i makes to agency j in year t. We estimate a negative binomial count model with conditional mean μ_{ijt} and overdispersion parameter α. The conditional mean is linked to covariates via the log link, $\log(\mu_{ijt})$: a one-unit increase in a covariate multiplies the expected count by $\exp(\beta)$, holding other terms fixed.

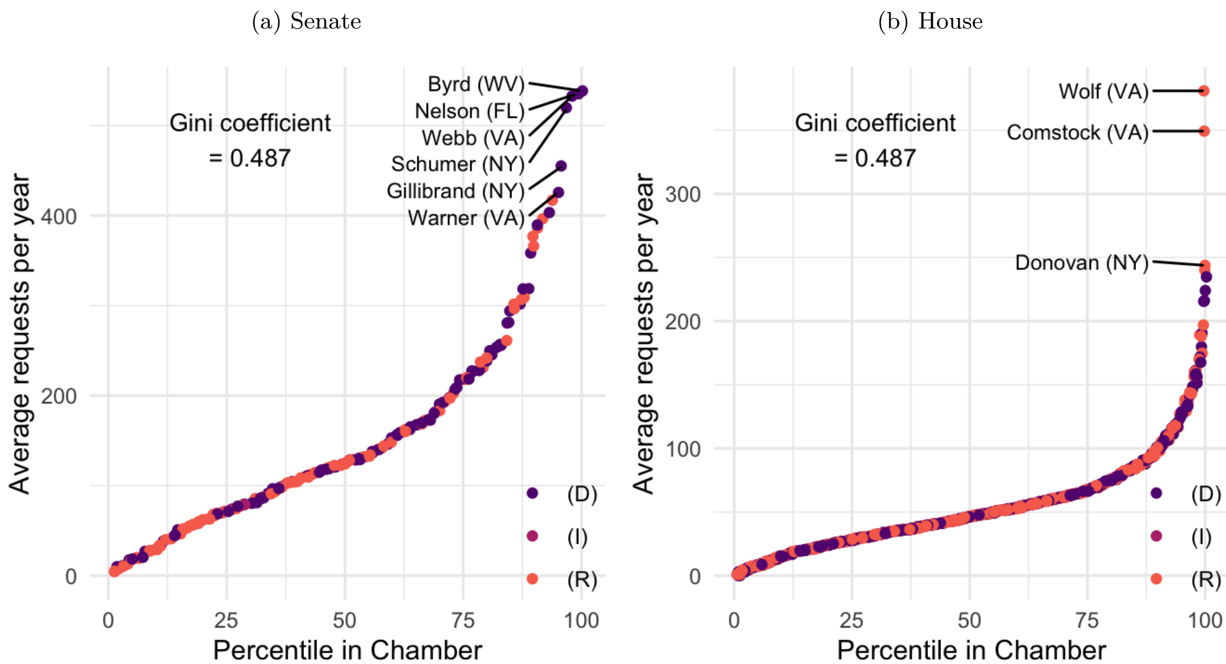
γ_{ij} denotes a *legislator–agency* fixed effect that is estimated using a true conditional fixed-effects approach (i.e., conditioned out rather than included as a full set of dummy variables). This fixed effect controls for time-invariant legislator characteristics and time-invariant legislator–agency-specific factors, including persistent constituent demand for assistance from a given agency and stable state or district attributes (population, demographics, local industries) that shape demand for particular agencies.

δ_{jt} is an agency-year fixed effect that accounts for agency-specific shocks over time that may affect the level of requests received from legislators in the periods for which data are available from each agency.

4 Results

The simple descriptive result in figure Figure 1 immediately puts to rest the naive theory of proportional representation. The Gini coefficient of inequality for the House, where all members represent a similar number of constituents, is similar to that of the Senate. The rest of this section investigates explanations for this inequality. However, it is important to note that not all models explain the levels of inequality, much less the variation seen in the data. Gini coefficients for inequality in interbranch representation have increased from .37 in the Senate and .40 in the House in 2007 (a range that maps to Gini coefficients for income inequality in countries like Kenya and Philippines) to .47 in the Senate and .54 in the house in 2020 (a range that maps to Gini coefficients for income inequality in the top 10 most unequal countries, including Honduras at .47 and Zimbabwe at .50), with an average of .49 for both chambers. The regression models below never predict Gini coefficients for interbranch representation greater than .34 (comparable to income inequality in Italy and Latvia), the lowest level observed in either chamber in any year in our data.

Figure 1: Observed levels of interbranch representation per legislator per year

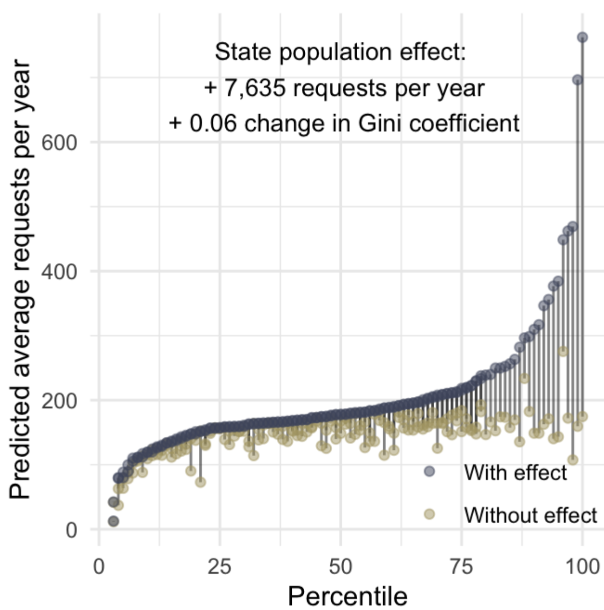


4.1 Demand and Capacity

Models 1, 3, and 5 (columns 1, 3, and 5 of Table 2) show differences across legislators. Estimating the effect of constituent demand is difficult, primarily because demand is directly affected by both the capacity and strategic behavior of legislator offices when they advertise constituency services. Second, the population in the house districts is the same, so there is no variation to exploit in the number of constituents per representative. However, budgets for staff are determined by the population of the state. Under these conditions, failing to find a significant relationship between state population and senators would be surprising evidence against both constituent demand and congressional capacity as drivers of interbranch representation.

Unsurprisingly, the first row of Table 2 shows a relationship between state population and the amount of interbranch representation that Senators have. Because state populations do not change relative to each other, we are only able to estimate this for the cross-sectional model (column 5 in Table 2). Using the coefficients and fixed effects from this model, Figure 2 shows the predicted average levels of interbranch representation per year per senator compared to a counterfactual where we re-estimate levels for a counterfactual scenario where all states had the population of Wyoming (and thus all Senators had equal staff budgets equal to those of Wyoming).

Figure 2: Predicted levels of interbranch representation per Senator per year compared to counterfactual of equal state population



Capacity

Legislators with more institutional capacity make more requests. Model 1 shows that committee chairs, ranking members, members of oversight committees, and members of prestige committees all provide more interbranch representation than other legislators. Except for prestige committee membership, these hold

Table 2: The effect of capacity on total requests to federal agencies

	(1)	**(2)**	**(3)**	**(4)**	**(5)**	**(6)**
Dependent variable	**Count**	**Count**	**Count**	**Count**	**Count**	**Count**
State population (millions)					0.040**	
					(0.009)	
Committee chair	0.607**	0.190**	0.348**	0.322**	0.121	0.135**
	(0.075)	(0.045)	(0.076)	(0.068)	(0.078)	(0.046)
Ranking member	0.619**	0.118**	0.185*	0.181**	0.280**	0.139**
	(0.081)	(0.037)	(0.075)	(0.055)	(0.085)	(0.047)
Prestige committee	0.294**	0.011	−0.020	−0.037	0.041	0.122†
	(0.046)	(0.032)	(0.037)	(0.029)	(0.075)	(0.065)
Oversight committee	0.356**	0.122**	0.289**	0.066*	0.154**	0.041
	(0.029)	(0.032)	(0.025)	(0.033)	(0.046)	(0.040)
Three+ years in office	0.192**	0.185**	0.175**	0.152**	0.523**	0.336**
	(0.037)	(0.025)	(0.032)	(0.026)	(0.095)	(0.064)
Majority	0.049	−0.036*	−0.001	−0.046*	0.101†	0.010
	(0.038)	(0.017)	(0.026)	(0.018)	(0.058)	(0.035)
President's party	0.107**	0.031*	0.009	0.027†	0.105*	0.041
	(0.035)	(0.014)	(0.025)	(0.015)	(0.043)	(0.025)
Observations	430.821	245.332	340.626	184.859	77.987	56.374
Year x agency fixed effects	X	X	X	X	X	X
Legislator x agency fixed effects		X		X		X
All legislators	X	X				
Only House			X	X		
Only Senate					X	X

† p <0.1, * p <0.05, ** p <0.01
This table shows estimates of the effect of legislator capacity (chair and ranking member positions and years in office) and institutional positions that may affect strategic behavior (oversight committee membership, majority party status, co-partisan president) on levels of interbranch representation. All coefficients represent the average additional requests per year per agency; per legislator, per year effects are simply these coefficients times the number of agencies in the data.

significance just within the House (model 3). Among senators (Model 5), only ranking members and oversight committee members are significantly more representation. Because we estimate the effects of becoming a committee chair and being a member of a prestige committee in the same model, these effects are additive: prestige committee chairs may make more requests than non-prestige committee chairs, who make more requests than non-chairs.

Figure 3 shows how differing levels of capacity among legislators affect the total predicted level of inequality in interbranch representation estimated in model 1. First, we predict the number of requests per legislator per year per agency for all legislator-year-agency observations in the data using all model parameters, including legislator fixed effects. Then we estimate counterfactual levels without one or more effects. Figure 3 (a) shows the counterfactual where no legislators have the capacity that comes with a committee chair position. Differences in this counterfactual are concentrated on legislators in the top percentiles because committee chairs tend to do the most interbranch representation. Figure 3 (b) shows the counterfactual where no legislators have the capacity that comes with a ranking minority position. Figure 3 (c) shows the counterfactual where no legislators have the capacity that comes with more than two years in office. Figure 3 (d) shows the sum of these capacity effects, a counterfactual where no legislators have the capacity that comes with a chair, ranking minority position, or more than two years of experience. This represents a world where all members turn over every congress and committees have no staff.

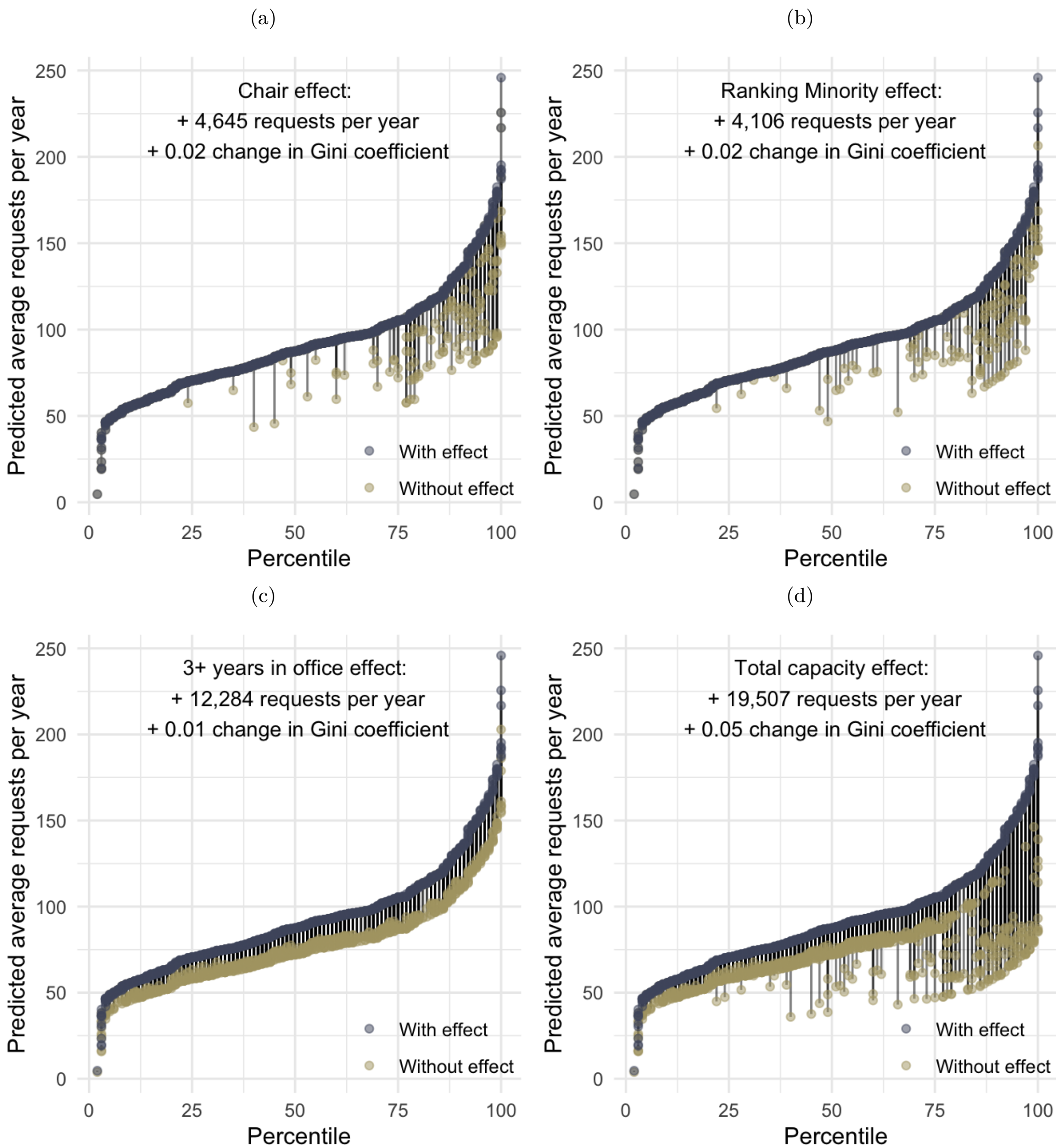
Overall, elements of legislator capacity modeled in Table 2 explain a significant level of inequality in interbranch representation. These differences are both statistically significant and substantively large relative to other causes of variation that are captured in the legislator fixed effects, explaining over 10% of total inequality predicted by the model.

However, these cross-sectional differences may be the result of other legislator characteristics. If party leaders assign legislators who are better at their jobs to more prestigious committee positions, then the estimates from model 1 confound legislators' overall ability with capacity that is the result of staff resources and experience. To address potential confounding, model 2 in Table 2 shows the difference-in-differences specification. Our three capacity-related predictors are all significant predictors of within-legislator variation as well. Gaining a chair position, a ranking member position, or more than two years of experience in office all cause legislators to engage in more interbranch representation.

Staff Allocation

Legislators who allocate more staff to constituency service make more requests; those who allocate more staff to communications make fewer. Table 3 model 1 shows that legislators who allocate more of their budget to constituency service staff provide more interbranch representation than other legislators. These hold significance just within the House (model 3). Because we estimate the effects of becoming a committee chair and staff allocation in the same model, these effects are additive: committee chairs who allocate more staff to constituency service and less to communications make more requests than other committee chairs,

Figure 3: Predicted levels of interbranch representation per legislator per year compared to counterfactuals



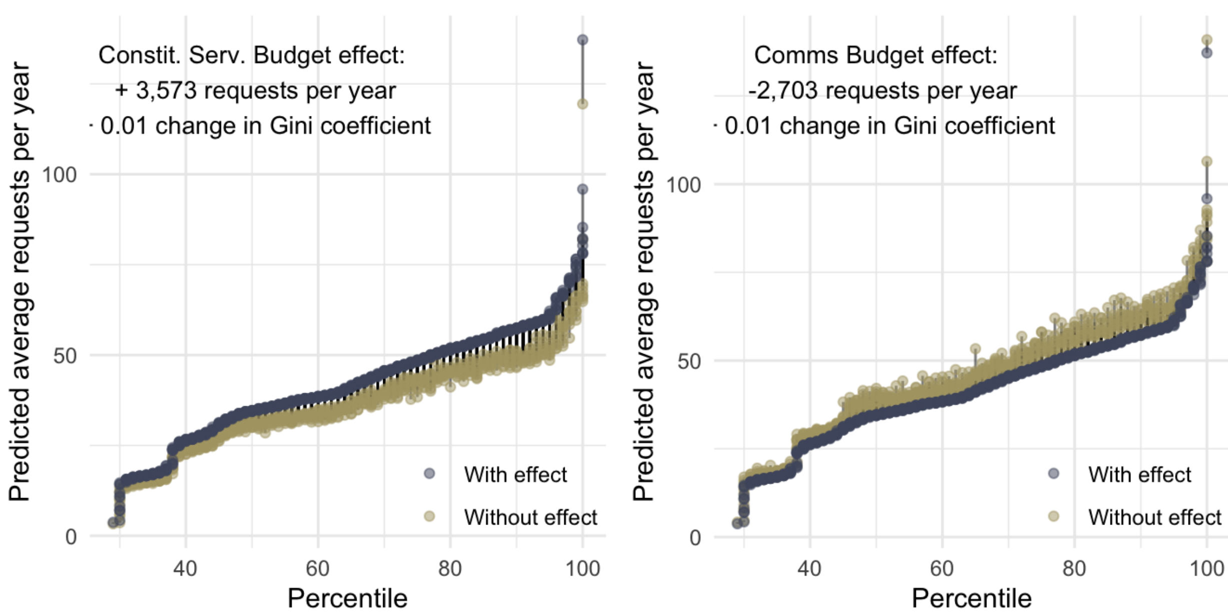
who make more requests than non-chairs. In terms of magnitude, a committee chair position is similar to spending 1 million more per year on constituency service staff.

Similar to Figure 3, Figure 4 shows how the differing allocation of staff spending among members of the House affects the total predicted level of inequality in interbranch representation estimated in model 1. Figure 4 (a) shows the counterfactual where representatives allocate none of their budget to constituency service. Differences in this counterfactual are spread across the distribution because, despite significant variation, most legislators allocate a large share of their budget to constituency service staff. Figure 4 (b) shows the counterfactual where all representatives allocate no resources to communications.

Overall, elements of legislator staff allocation modeled in Table 3 explain a significant amount of the volume of requests to federal agencies, but do not explain inequality in interbranch representation.

Figure 4: Predicted levels of interbranch representation per representative per year compared to counterfactual staffing levels

(a) (b)



However, these cross-sectional differences may be the result of other legislator characteristics. If members who allocate more staff to constituency service or communications also differ in unobserved ways, then the estimates from model 1 confound legislators' unobserved differences with capacity that is the result of staff allocation. To address potential confounding, model 2 in Table 2 shows the difference-in-differences specification. Constituency service staffing is a significant predictor of within-legislator variation as well, but communications staffing is not. A member allocating more of their staff budget to constituency service causes their office to provide more interbranch representation, but we lack causal evidence for communications staffing.

Table 3: The effect of staff allocation on total requests to federal agencies

	(1)	(2)	(3)	(4)
Dependent Variable	**Count**	**Count**	**Count**	**Count**
Committee chair	0.339**	0.238**	0.337**	0.238**
	(0.086)	(0.077)	(0.085)	(0.076)
Ranking member	0.178*	0.126†	0.178*	0.126†
	(0.082)	(0.072)	(0.082)	(0.072)
Prestige committee	−0.005	0.004	−0.005	0.004
	(0.043)	(0.035)	(0.043)	(0.035)
Oversight committee	0.274**	0.015	0.273**	0.015
	(0.027)	(0.041)	(0.028)	(0.041)
Three+ years in office	0.169**	0.102**	0.157**	0.102**
	(0.040)	(0.037)	(0.040)	(0.037)
Majority	−0.039	−0.078**	−0.042	−0.078**
	(0.032)	(0.021)	(0.033)	(0.021)
President's party	0.001	−0.005	−0.011	−0.005
	(0.039)	(0.021)	(0.040)	(0.021)
Leg. Spending	0.059	0.058	0.044	0.058
	(0.187)	(0.128)	(0.189)	(0.128)
Pol. Spending	−0.129	0.036	−0.144	0.035
	(0.273)	(0.138)	(0.277)	(0.138)
Comm. Spending	−1.274*	0.097	−1.281*	0.097
	(0.570)	(0.323)	(0.575)	(0.323)
Office spending	−0.327	−0.178	−0.326	−0.179
	(0.372)	(0.214)	(0.379)	(0.213)
Const. Spending	0.379*	0.310*	0.369*	0.310*
	(0.174)	(0.123)	(0.176)	(0.123)
Observations	213.674	109.011	207.450	106.873
Year x agency fixed effects	X	X	X	X
Legislator x agency fixed effects		X		X
All Legislators	X	X		
Served At Least 2nd Term			X	X

† p <0.1, * p <0.05, ** p <0.01
This table shows estimates of the effect of legislator capacity (chair and ranking member positions and years in office) and institutional positions that may affect strategic behavior (oversight committee membership, majority party status, co-partisan president) on levels of interbranch representation. All coefficients represent the average additional requests per year per agency; per legislator, per year effects are simply these coefficients times the number of agencies in the data.

Table 4: The effect of capacity on total requests to federal agencies per district

	(1)	**(2)**	**(3)**	**(4)**
Dependent variable	**Count**	**Count**	**Count**	**Count**
New member	−0.432**	−0.158**	−0.489**	−0.162**
	(0.066)	(0.018)	(0.085)	(0.042)
New member x same party			0.184	0.017
			(0.179)	(0.054)
Same party			−0.417**	−0.049
			(0.127)	(0.052)
Observations	442.597	442.597	181.486	181.458
Year x agency fixed effects	X	X	X	X
District fixed effects		X		X

† p <0.1, * p <0.05, ** p <0.01
This table shows estimates of the effect of electing a new member of the same or different party on levels of interbranch representation. All coefficients represent the average additional requests per year per agency; per district, per year effects are simply these coefficients times the number of agencies in the data.

Staff quality

To test whether retaining staff from the prior representative impacts interbranch representation, Table 4 shows district-level models (estimating counts per district per year per agency with agency-year fixed effects). Consistent with the positive effect of legislator experience in the legislator-level models above, all specifications in Table 4 show a strong negative effect of a district electing a new legislator. Contrary to the hypothesis that legislators replacing a member of the same party would increase capacity, we see that districts where a new representative was elected from the same party see less interbranch representation (model 1). However, this difference across districts could be the result of other district-level differences, and indeed, there appears to be no relationship in the within-district design (model 2).[3] It is possible that other measures of staff quality would yield different results.

[3]Two important notes: (1) We only observe whether a legislator is replaced by a member of the same party or a different party after a seat turns over *within a 10-year redistricting window.* (2) Regarding the difference in difference design, it is worth noting that the number of competitive districts that saw turnover both to a member of the same party *and* to a member of the other party within a 10-year redistricting period, so much of the inference in the difference-in-difference comes from the Senate.

4.2 Strategic Behavior

To assess strategic behavior, we return to legislator-level models, first returning to the motivation-related variables Table 2 and then including variables for electoral competition in Table 5 and for voting behavior and perceived ideology in Table 6.

Strategic responses to partisan institutions

One well-established driver of interbranch representation is partisan institutional control. When members of the minority party are blocked from agenda control or cross-pressured, they use interbranch representation to serve their district in ways other than legislating (Ritchie 2018, 2023). To estimate how large a role minority party status plays in overall levels and inequality in interbranch representation, Figure 5 (a) compares predictions for observed values to a counterfactual where all members behave as if they are in the minority (based on cross-sectional differences in Table 6, model 1). Because this majority/minority party status is only statistically significant in difference-in-difference specifications, subfigure (b) shows the same counterfactual estimated with predictions from the Table 2 model 2. Most of the variance is captured in legislator fixed effects; the aggregate differences are necessarily smaller for difference-in-difference predictions.

Figure 5 (c) compares predictions for observed values to a counterfactual where all members behave as if the president is of the opposite party (based on cross-sectional differences in Table 6, model 1). Because this majority/minority party status is only statistically significant in difference-in-difference specifications, Figure 5 (d) shows the same counterfactual estimated with predictions from Table 2 model 2. Legislators with co-partisan presidents do more interbranch representation. When a legislator gains a co-partisan president, that same legislator can also be expected to do more interbranch representation. However, because partisanship is not concentrated on one end of the distribution, these partisan has little effect on the level of inequality.

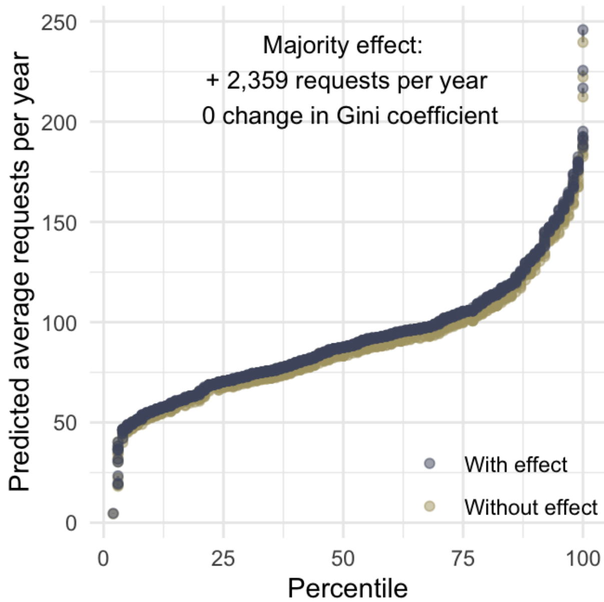
Electoral security

Table 5 shows inconsistent support for the theory that interbranch representation is reelection motivated (King 1991). Cross-sectionally, we find differences across legislators whose prior election was competitive or not (model 1), including when we subset to legislators who were reelected (model 3). However, the within-member design (models 2 and 4) does not show a difference in behavior when a member had recently faced a competitive election and when they had not.

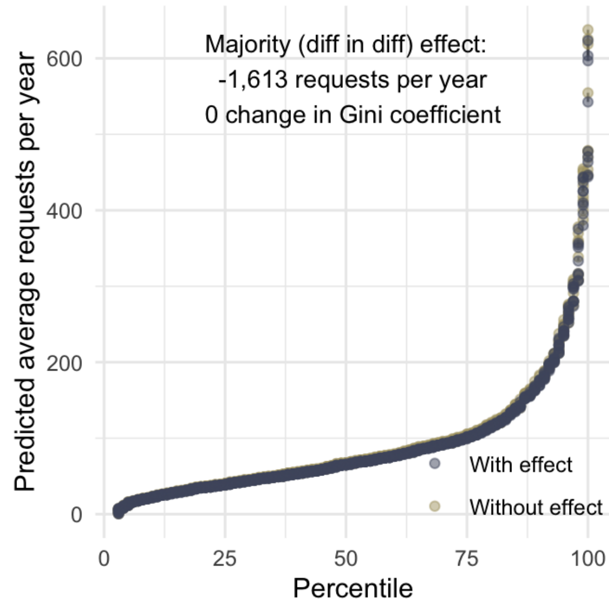
Figure 6 shows the predicted levels of interbranch representation from Table 5 compared to a counterfactual where no member's prior general election had been competitive. Because differences in general election competition are only statistically different across members (not within), Figure 6 (a) shows cross-sectional differences (Table 5, model 1). Because differences in primary election competition are only statistically different within members, Figure 6 (b) shows difference-in-differences (Table 5, model 2). The estimated difference between competitive and non-competitive districts is spread across the distribution of representatives

Figure 5: Predicted levels of interbranch representation compared to counterfactuals of no partisan effects

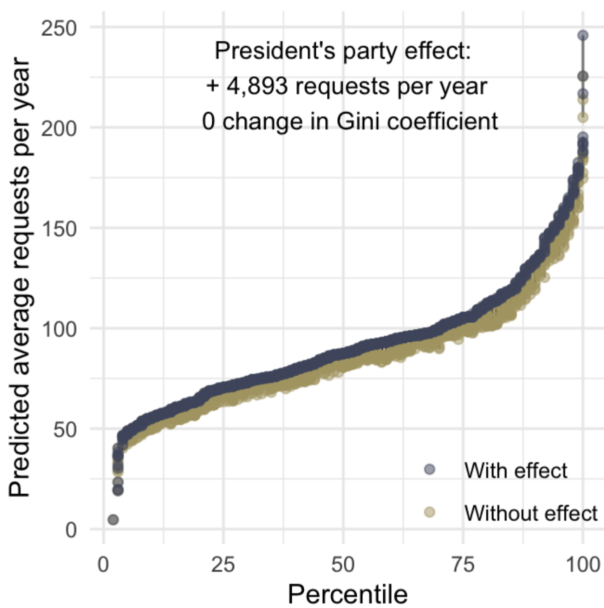
(a)



(b)



(c)



(d)

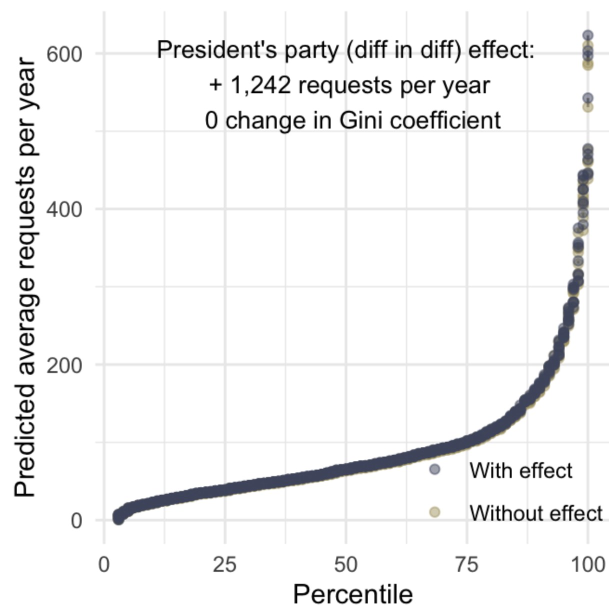


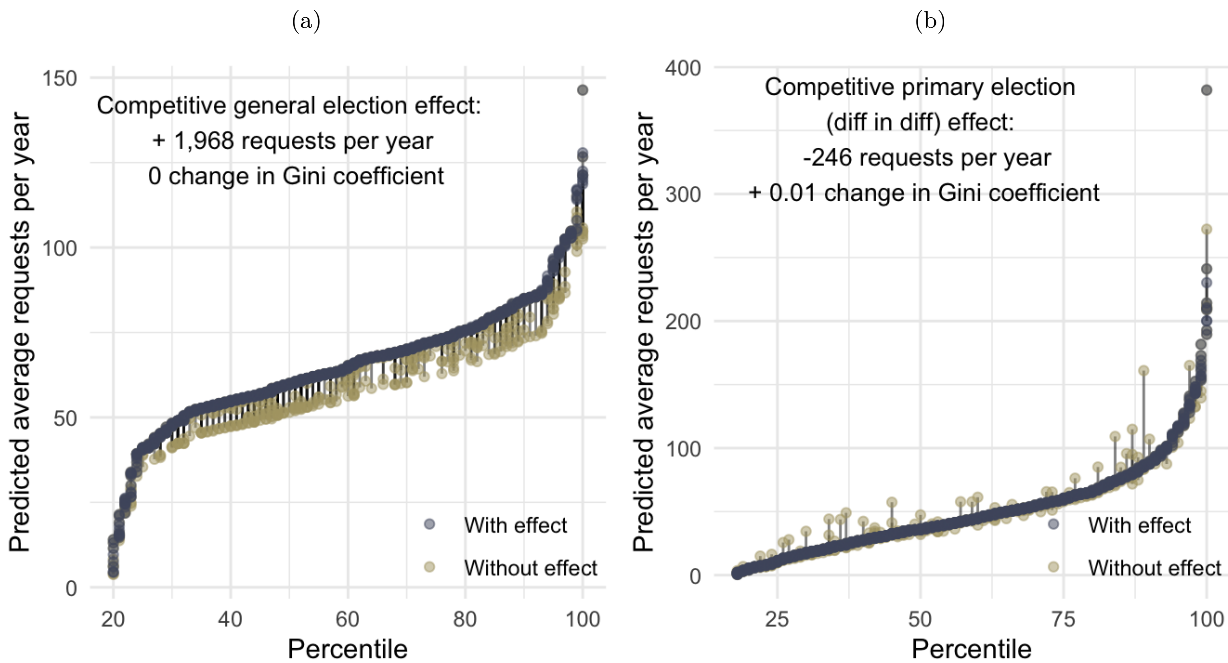
Table 5: The effect of electoral security on total requests to federal agencies

	(1)	**(2)**	**(3)**	**(4)**
Dependent variable	**Count**	**Count**	**Count**	**Count**
Competitive general	0.146**	−0.019	0.145**	−0.011
	(0.039)	(0.028)	(0.041)	(0.030)
Competitive primary	−0.039	0.120**	−0.045	0.118**
	(0.046)	(0.038)	(0.049)	(0.038)
Committee chair	0.355**	0.332**	0.355**	0.331**
	(0.078)	(0.068)	(0.078)	(0.068)
Ranking member	0.175*	0.179**	0.172*	0.179**
	(0.073)	(0.056)	(0.072)	(0.056)
Prestige committee	−0.009	−0.035	−0.011	−0.034
	(0.037)	(0.031)	(0.038)	(0.031)
Oversight committee	0.283**	0.049	0.284**	0.050
	(0.026)	(0.035)	(0.026)	(0.035)
Three+ years in office	0.192**	0.181**	0.158**	0.177**
	(0.036)	(0.031)	(0.038)	(0.031)
Majority	−0.013	−0.058**	−0.018	−0.051**
	(0.027)	(0.019)	(0.027)	(0.019)
President's party	0.031		0.025	0.023
	(0.025)		(0.026)	(0.016)
Observations	322.987	175.725	313.209	172.860
Year x agency fixed effects	X	X	X	X
Legislator x agency fixed effects		X		X
Served At Least 2nd Term			X	X

† p <0.1, * p <0.05, ** p <0.01
This table shows estimates of the effect of electoral competition on levels of interbranch representation. All coefficients represent the average additional requests per year per agency; per legislator, per year effects are simply these coefficients times the number of agencies in the data.

who provide higher and lower levels of interbranch representation, and thus, has little impact on the inequality across districts.

Figure 6: Predicted levels of interbranch representation compared to counterfactual of no electoral competition

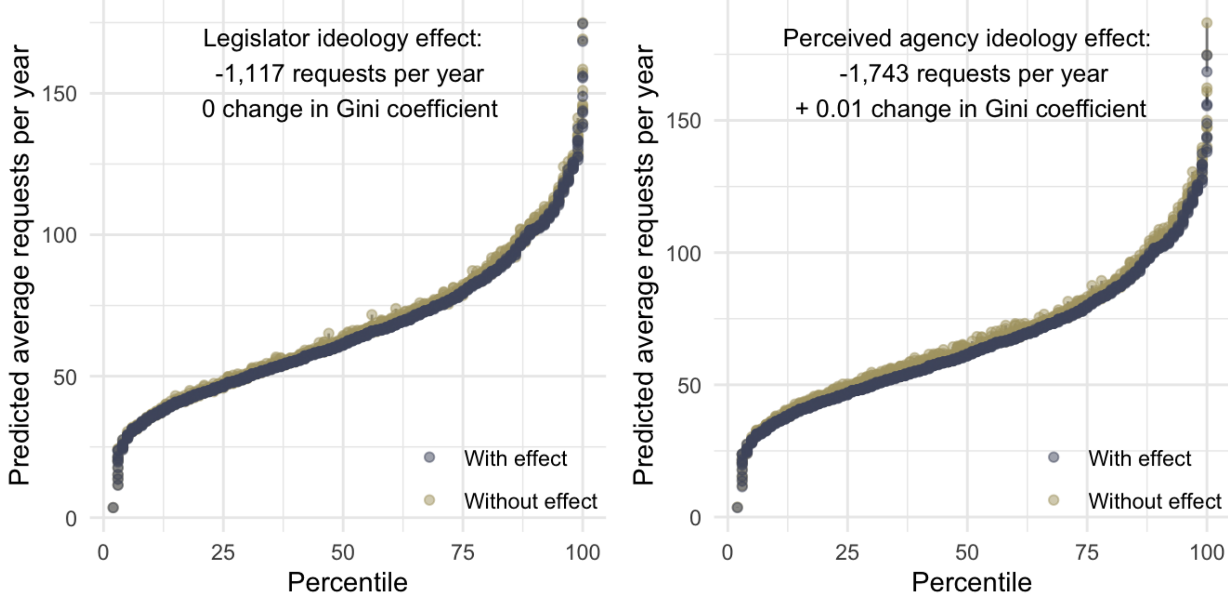


5 Ideology and Oversight

While potentially evidence of strategic behavior, legislators engaging more with agencies that they oversee or those perceived as ideologically similar or distant is about *which* agencies representatives target, rather than *how much* they do.[4] However, some agencies receive much more attention than others, and thus, some oversight committees are much more active than others. This uneven distribution of attention leads both oversight committee membership and perceived ideological distance to alter the overall level of inequality, but in different directions. Including the additional requests that members of oversight committees make significantly increases the Gini coefficient (compared to a counterfactual where legislators behaved as if they did not have an oversight committee position). Compared to a counterfactual where all members had NOMINATE scores of 0 (subfigure a), predicted levels of interbranch representation are lower and slightly less unequal. Compared to a counterfactual where all agencies had ideology scores of 0 (subfigure b), predicted levels of interbranch representation are higher and slightly more unequal.

Figure 7: Predicted levels of interbranch representation compared to counterfactual of no difference in legislator ideology (a) and perceived agency ideology (b)

(a) (b)



[4]To measure agency ideology, we rely on Richardson et al. (2018b)'s measure of elite perceptions of agency ideology.

Table 6: The effect of ideology on total requests to federal agencies

	(1)	(2)
Dependent variable	**Count**	**Count**
Committee chair	0.571**	0.605**
	(0.076)	(0.076)
Ranking member	0.575**	0.599**
	(0.074)	(0.075)
Prestige committee	0.256**	0.266**
	(0.046)	(0.046)
Oversight committee	0.366**	0.368**
	(0.029)	(0.031)
Abs(nominate)	−0.855**	−0.833**
	(0.183)	(0.187)
Abs(nominate) x president's party	−0.170	−0.138
	(0.216)	(0.228)
Ideological distance	−0.095**	−0.096**
	(0.030)	(0.030)
Ideological distance x president's party	−0.031	−0.026
	(0.024)	(0.025)
Three+ years in office	0.186**	
	(0.038)	
Majority	0.049	0.036
	(0.038)	(0.039)
President's party	0.151	0.143
	(0.094)	(0.099)
Observations	229.036	219.533
Year x agency fixed effects	X	X

† p <0.1, * p <0.05, ** p <0.01
This table shows estimates of the effect of ideological distance on levels of interbranch representation. All coefficients represent the average additional requests per year per agency; per legislator, per year effects are simply these coefficients times the number of agencies in the data.

6 Discussion and Conclusion

We find high levels of inequality in interbranch representation. A large share of this inequality can be explained by legislator capacity, especially staff resources and experience. We find evidence of strategic behavior, with strong evidence that legislators work with ideologically proximate agencies and those whose committees they oversee, but this behavior does not explain inequality. We find some evidence for theories that interbranch representation is reelection-motivated and a substitute for legislating when one's party is out of power. Because legislator capacity drives so much of the inequality we observe, capacity-focused reforms — larger staffs, stronger training, and better retention of experienced personnel — may offer a promising lever for more equitable interbranch representation.

A focus on interbranch representation adds important nuance to modern narratives about a broken Congress. Although Congress may be broken in many ways, one under-appreciated way in which Congress still works is through interbranch representation (at least for some districts). The First Amendment to the U.S. Constitution guarantees the right "to petition the Government for a redress of grievances." In practice, citizens' most direct experience with the federal government is with federal agencies. When citizens have grievances or simply need help navigating the federal bureaucracy, they petition their elected representatives for help. Legislators, in turn, petition the government for redress, facilitating responsiveness from agencies.

Examining interbranch representation reshapes our understanding of how the legislative and executive interact. Our models of interbranch relations (both in public discourse and formal theory) are largely based on a formal, constitutionally prescribed division of legislative and executive functions. Thus, political scientists have focused on legislative bargaining, delegation of policymaking authority, and oversight hearings. This focus neglects the primary way legislators interact with the executive branch. While certainly operating in the shadow of formal oversight, lawmaking, and budgeting powers, interbranch representation mostly relies on norms, relationships, and softer forms of legitimacy. From an interbranch representation perspective, "separation of powers" is a misleading moniker. The behavior we document involves formal and informal mechanisms by which legislators influence how the executive branch makes and implements policy on a daily basis. There are a few executive branch activities that Members of Congress do not involve themselves in, and any lack of involvement is likely due to a lack of capacity rather than any formal separation of powers on paper.

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